

Court No. - 9

Case :- WRIT - C No. - 28435 of 2007

Petitioner :- M/S Radha Krishna

Respondent :- M.D., D.V.V.N. And Another

Petitioner Counsel :- Vishal Dixit, Hare Krishna Misra, Mohd. Rafi

Respondent Counsel :- H.P. Dube, S.C.

Hon'ble D.S.R. Varma, J.

Hon'ble Abhinava Upadhya, J.

As prayed, list in the next cause list.

Order Date :- 14.12.2010

SKM

Court No. - 9

Case :- WRIT - C No. - 28435 of 2007

Petitioner :- M/S Radha Krishna

Respondent :- M.D., D.V.V.N. And Another

Petitioner Counsel :- Vishal Dixit, Hare Krishna Misra, Mohd. Rafi

Respondent Counsel :- H.P. Dube, S.C.

Hon'ble D.S.R. Varma, J.

Hon'ble Abhinava Upadhya, J.

Learned counsel appearing for the U.P. Power Corporation prays for and is allowed three weeks' time to file objection to the amendment application filed by the petitioner and will also inform the Court regarding filing of any appeal against the order passed by the Special Court under Section 154 of the Electricity Act and passing of any interim order by the next date.

List thereafter.

Order Date :- 22.12.2010

SKM

Court No. - 9

Case :- WRIT - C No. - 28435 of 2007

Petitioner :- M/S Radha Krishna

Respondent :- M.D., D.V.V.N. And Another

Petitioner Counsel :- Vishal Dixit, Hare Krishna Misra, Mohd. Rafi

Respondent Counsel :- H.P. Dube, S.C.

Hon'ble D.S.R. Varma, J.

Hon'ble Abhinava Upadhyaya, J.

Learned counsel for the respondents was granted time to file counter affidavit to the amendment application. However, no counter affidavit has been filed till date. As a last opportunity, three weeks' and no more time is allowed for filing counter affidavit.

List thereafter.

Order Date :- 20.1.2011

SKM

Court No. - 9

Case :- WRIT - C No. - 28435 of 2007

Petitioner :- M/S Radha Krishna

Respondent :- M.D., D.V.V.N. And Another

Petitioner Counsel :- Vishal Dixit, Hare Krishna Misra, Mohd. Rafi

Respondent Counsel :- H.P. Dube, S.C.

Hon'ble D.S.R. Varma, J.

Hon'ble Abhinava Upadhya, J.

Heard learned counsel for the parties.

The petitioner was having electricity connection for the purpose of running a cold storage. The authorities of the Corporation raided the premises of the petitioner on 22nd June, 2007 and charged the petitioner of theft of electricity on the ground that seal of the meter was broken. According to the authority of the Corporation, the said act of the petitioner was a criminal offence and cognizable under the Indian Penal Code. An F.I.R. was lodged on the same day invoking the provision of section 135 of the Electricity Act, 2003. Pursuant to the said F.I.R. a criminal trial proceeded in the court of Special Judge (Essential Commodities Act), Etah. However by order dated 13th August 2009 the trial court held that the charge of theft is not made out against the petitioner.

The petitioner come up to this Court for restoration of electricity connection. However, this court during the pendency of the writ petition, vide its order dated 29th June, 2007 directed for restoration of electricity connection with the condition that the petitioner shall deposit Rs.10 lacs with respondent no. 2, the Corporation. Learned counsel for the petitioner submits that now charge of theft having not been proved against the petitioner and no criminal charge being pending against the petitioner, he is entitled for the refund of the amount under clause 8.2(x) (f) and (h) of the U.P. Electricity Supply Code, 2005.

Learned counsel appearing for the respondent -Corporation submits that against the order of the trial court, a revision, being Revision No.4697 of 2009, has been filed before this court and notices have also been issued. Learned counsel appearing for the petitioner does not dispute this fact.

However, he submits that no interim order of protection has been granted by this Court in favour of the Corporation and therefore, there is no impediment for the refund of the said amount to the petitioner.

However, this fact cannot be disputed that if the Corporation has filed a revision against the order of acquittal, the proceedings have not attained finality and therefore, it would be in the interest of justice if it is directed that the respondent Corporation will refund the amount so deposited by the petitioner, provided the petitioner furnishes security, other than cash or bank guarantee, to the satisfaction of the concerned Executive Engineer. Therefore, we order accordingly. The amount shall be refunded to the petitioner within a period of two months after the petitioner furnishes adequate security, as directed above.

With the aforesaid direction and on the consent of the counsel for the parties, the writ petition is disposed of finally.

Order Date :- 13.4.2011

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